TRIAL PREPARATION GUIDE

Your Complete Legal Roadmap to Victory

Daryl Keenan Mack

v

Greene Consulting Engineers (Pty) Ltd

Unfair Dismissal | Automatically Unfair Dismissal | ECSA Misconduct

Dismissal: 9 March 2026 | CCMA Deadline: 8 April 2026

Automatically Unfair Dismissal (s187 LRA)	Procedural Unfairness (Sch 8 LRA)	Substantive Unfairness (s188 LRA)	ECSA Professional Misconduct (EPA s26)

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HOW TO USE THIS GUIDE

This document is your personal trial preparation brief. It is structured the way a supervising advocate prepares a candidate for tribunal proceedings. Read every section. Study the legislation. Know the facts. When you walk into the CCMA you are not a victim — you are a prepared professional with a stronger documented case than your opponent.

READ THIS BEFORE ANYTHING ELSE

- Every argument you make must link to THREE things: a LAW or ACT, a FACT from your evidence, and a DOCUMENT that proves it
- Greene will argue probation provisions. Your answer is always Section 187 automatically unfair dismissal — probation does not override it
- Greene will argue insubordination. Your answer is always that the instruction was unlawful under the Engineering Profession Act — you cannot be insubordinate for refusing an unlawful instruction
- Greene will invoke the NDA. Your answer is always Clause 3.2.5 of their own NDA — statutory disclosures are excluded
- Their termination letter contradicts itself on supervision — Larry Nell is named as supervisor but reporting to Ruan Van Zyl is cited as a lawful instruction — these cannot both be true
    - You have 30 days from 9 March 2026 to file at the CCMA — DEADLINE IS 8 APRIL 2026 — DO NOT MISS IT

PART 1 — THE LEGISLATION: EVERY LAW BROKEN AND WHERE TO FIND IT

This section is your legal arsenal. For every law listed below, you will find: what the law states (verbatim), what Greene did that breaches it, what your evidence proves, and where to access the full text. Study each law until you can explain it in plain language.

LAW 1 — Labour Relations Act 66 of 1995: Section 187 — Automatically Unfair Dismissal

Where to Find It

- Full title: Labour Relations Act 66 of 1995 (LRA)
- Section 187(1) — Automatically unfair dismissals
- Section 194(3) — Compensation for automatically unfair dismissal
- Online: www.gov.za/documents/labour-relations-act — free download
- Also available at: www.saflii.org — South African Legal Information Institute — free

What the Law States

LRA s187(1)(b)	*A dismissal is automatically unfair if the employer, in dismissing the employee, acts contrary to section 5 or, if the reason for the dismissal is that the employee exercised any right conferred by this Act.*

LRA s187(1)(h)	*A dismissal is automatically unfair if the reason for the dismissal is that the employer wished to prevent the employee from exercising a right conferred by this Act or any employment law.*

LRA s194(3)	*If the unfair dismissal is an automatically unfair dismissal, the compensation awarded to the employee may not exceed the equivalent of 24 months' remuneration calculated at the employee's rate of remuneration at the date of dismissal.*

What Greene Did That Breaks This Law

BREACH	Greene dismissed you on 9 March 2026 — nine days after you were hired — because you asserted your right to proper supervision under the Engineering Profession Act 46 of 2000. The termination letter itself quotes your assertion of statutory rights as the reason for dismissal. This is the most explicit possible evidence of automatically unfair dismissal.

- You asserted your right to PrEng supervision on 6 March 2026 in writing — this is a right conferred by the Engineering Profession Act which is an employment law
- You were dismissed three days later citing that assertion as insubordination
- Section 187(1)(h) applies — Greene wished to prevent you from exercising your right to proper professional supervision

  - CRITICAL NEW EVIDENCE: On 5 March 2026 between 7:00 and 8:00am, Larry Nell called you into his office and told you that upper management was not impressed and wanted to let you go — this was BEFORE your 6 March comprehensive email
- This proves the dismissal decision was formed in response to your 3 March protected communication — not the 6 March email Greene cites as the reason
- The sequence is: 3 March protected email → 5 March dismissal decision communicated by Larry → 6 March email used as post-hoc justification → 9 March formal execution
- The causal link between protected activity and dismissal is therefore even stronger — the decision preceded the stated reason by four days
- The causal link between the protected activity and the dismissal is further established by the termination letter itself — they quoted your statutory assertion as the reason for dismissal

Your Argument at the CCMA

1. State clearly: 'My dismissal falls under Section 187(1)(h) of the Labour Relations Act 66 of 1995 — automatically unfair dismissal.'
2. Hand the commissioner the termination letter. Point to Section 3. Their own document quotes my assertion of Engineering Profession Act rights as the reason for dismissal.
3. State: 'The Engineering Profession Act 46 of 2000 is an employment law as defined. My right to proper PrEng supervision is conferred by that Act. I was dismissed for asserting it. That is automatically unfair under Section 187.'
4. State the compensation ceiling: 'Section 194(3) provides for compensation of up to 24 months remuneration — R876,000 in my case — which is Greene's legal exposure if this matter proceeds to arbitration.'

VERDICT: Section 187 is your strongest argument. Greene's own termination letter proves it. The causal link is explicit, documented, and irrefutable.

Cross-Reference: *Part 2 — Your Case Facts | Part 3 — Engineering Profession Act | Part 5 — Termination Letter Analysis*

LAW 2 — Labour Relations Act 66 of 1995: Section 188 — Substantive Unfairness

Where to Find It

- Labour Relations Act 66 of 1995 — Section 188
- Code of Good Practice: Dismissal — Schedule 8 to the LRA — Items 1–8
- www.gov.za/documents/labour-relations-act

What the Law States

LRA s188(1)	*A dismissal is unfair if the employer fails to prove that the reason for dismissal is a fair reason related to the employee's conduct or capacity or is based on the employer's operational requirements; and that the dismissal was effected in accordance with a fair procedure.*

LRA Sch8 Item 7	*Generally, it is not appropriate to dismiss an employee for a first offence except if the offence is so serious that it makes a continued employment relationship intolerable. In deciding whether or not to impose the penalty of dismissal, the employer should in addition to the gravity of the misconduct consider factors such as the employee's circumstances, including length of service, previous disciplinary record and personal circumstances.*

What Greene Did That Breaks This Law

BREACH	Greene dismissed you after 9 days of employment for a first and only alleged offence — asserting statutory professional rights in writing — without any prior disciplinary record, without any performance concerns having been raised, and without having assigned you a formal project against which your performance could even be assessed.

- The alleged reason — insubordination — is not a valid reason for dismissal when the instruction refused was unlawful
- A lawful instruction must comply with the law — an instruction requiring you to violate the Engineering Profession Act is not lawful
- You cannot be dismissed for insubordination where the underlying instruction was unlawful — this is established South African labour law
- Even if the instruction were lawful, dismissal for a single written email raising professional concerns is disproportionate under Schedule 8 Item 7

VERDICT: Substantive unfairness is your secondary argument. The reason stated — insubordination — fails because the instruction itself was unlawful.

Cross-Reference: *Law 3 — Engineering Profession Act | Part 4 — Employment Contract Analysis*

LAW 3 — Labour Relations Act 66 of 1995: Schedule 8 — Procedural Unfairness

Where to Find It

- Labour Relations Act 66 of 1995 — Schedule 8: Code of Good Practice: Dismissal
- Schedule 8, Items 4, 5, 6, 8 — specifically Items 4 and 8
- www.gov.za/documents/labour-relations-act

What the Law States

Sch 8 Item 4(1)	*The employer should conduct an investigation to determine whether there are grounds for dismissal. This does not mean that the employer must treat the investigation as a formal enquiry — it simply means the employer must look into the alleged misconduct.*

Sch 8 Item 4(2)	*The employer should notify the employee of the allegations using a form and language that the employee can reasonably understand. The employee should be allowed the opportunity to state a case in response to the allegations. The*

	employee should be entitled to a reasonable time to prepare the response and to the assistance of a trade union representative or fellow employee.

Sch 8 Item 8(1)-(4)	*An employer may require a newly hired employee to serve a probationary period before the appointment is confirmed. During probation, the employer should give the employee reasonable evaluation, instruction, training, guidance or counselling in order to allow the employee to render a satisfactory service. If the employer decides that the employee's performance is not satisfactory, the employer should advise the employee of the respects in which the employee is not satisfactory and allow the employee an opportunity to improve.*

Sch 8 Item 8(5)	*An employer may dismiss an employee for failing to meet a performance standard if the employer has given the employee a reasonable opportunity to meet the standard and the employee failed to do so. This provision applies to unsuitability — not to misconduct.*

What Greene Did That Breaks This Law

BREACH	Greene dismissed you for the stated reason of insubordination — a misconduct ground — without conducting any investigation, issuing any written charge, convening any disciplinary hearing, or giving you any opportunity to respond to specific allegations before the dismissal decision was made. They then relied on Schedule 8 Item 8(5) — the probation unsuitability provision — which applies only to performance and unsuitability, not to misconduct.

- No investigation was conducted into the alleged insubordination — confirmed by the absence of any investigation record
- No written notice of allegations was issued — the termination letter was the first formal document you received
- No disciplinary hearing was held — confirmed by the absence of any hearing record
- No opportunity to respond to specific disciplinary charges was provided
- Greene conflated misconduct (insubordination) with unsuitability (Item 8(5)) — these are separate legal grounds requiring different processes
  - Dismissal for misconduct during probation still requires a disciplinary hearing — the probation period reduces but does not eliminate procedural requirements for misconduct dismissals
- Greene's own employment contract Clause 10 requires them to follow their disciplinary code — they breached their own contract

The Critical Distinction You Must Make

Greene will argue that Item 8(5) permits dismissal during probation without a full process. Your response must be precise:

- Item 8(5) applies to UNSUITABILITY — poor performance, lack of skills, incompatibility with role requirements
- Greene's stated reason is INSUBORDINATION — that is MISCONDUCT — a completely different legal category

- The Code of Good Practice distinguishes explicitly between conduct and capacity dismissals — you cannot use a capacity provision to justify a conduct dismissal
- State to the commissioner: 'The employer cannot use Schedule 8 Item 8(5) to justify a misconduct dismissal. If insubordination is the ground, a disciplinary hearing was required. None was held. The dismissal is procedurally unfair.'

VERDICT: Procedural unfairness is your third argument. No hearing. No charge. No process. Greene's own contract required it. They violated it.

Cross-Reference: *Law 1 — s187 | Part 4 — Contract Clause 10 | Part 5 — Letter Analysis*

LAW 4 — Basic Conditions of Employment Act 75 of 1997: Notice Pay

Where to Find It

- Basic Conditions of Employment Act 75 of 1997 (BCEA)
- Section 37 — Notice of termination of employment
- Section 41 — Severance pay
- Section 62 — Certificate of service
- www.gov.za/documents/basic-conditions-employment-act

What the Law States

BCEA s37(1)(a)	*Notice of termination of a contract of employment given by an employer must not be less than one week, if the employee has been employed for six months or less.*

BCEA s37(2)	*A provision in a contract of employment that provides for a shorter period of notice than the period set out in subsection (1) is void and of no effect, and the period of notice set out in subsection (1) applies.*

BCEA s62	*An employer must give an employee who was employed for longer than four months a certificate of service on termination of employment.*

What Greene Did That Breaks This Law

BREACH	The employment contract provides for 24 hours notice during the first four weeks. This is less than the BCEA minimum of one week. Section 37(2) renders the 24-hour clause void. You are entitled to one week's notice pay — approximately R8,400 gross — regardless of what the contract says.

- Contract Clause 4: 24 hours notice during first four weeks — this clause is void under BCEA s37(2)
- BCEA s37(1)(a) minimum: one week — this overrides the contractual provision
- One week notice pay at your salary: approximately R8,400 gross
- Certificate of service under BCEA s62: Greene is obligated to provide this — demand it in writing

- UI19 form: Greene is obligated to provide for your UIF claim — demand this in writing

VERDICT: BCEA notice pay is a statutory entitlement. The 24-hour contract clause is void. You are owed one week's notice pay.

LAW 5 — Engineering Profession Act 46 of 2000: Supervision of Candidate Engineers

Where to Find It

- Engineering Profession Act 46 of 2000 (EPA)
- Section 2 — Objects of ECSA
- Section 18 — Registration categories
- Section 26 — Prohibition on unregistered practice
- ECSA Guidelines for the Identification and Evaluation of Candidate Engineers — available at www.ecsa.co.za
- ECSA Code of Conduct for Registered Persons — available at www.ecsa.co.za
- Full Act: www.gov.za/documents/engineering-profession-act

What the Law States

EPA s26	*No person shall perform any act falling within the scope of the profession of an engineer unless such person is registered in terms of this Act in the appropriate category.*
EPA s2(c)	*The objects of the Council are to promote and maintain the integrity and status of the engineering profession and to serve and protect the public interest.*
ECSA Code s4	*A registered person shall accept responsibility for engineering work only when qualified to perform it, and shall sign and seal only those plans, specifications and reports prepared by or under the responsible supervision of the registered person.*
ECSA Candidate Guidelines	*A candidate engineer must be under the active supervision of a registered professional engineer for all work submitted as qualifying experience for professional registration. The supervising professional must review, mentor, and take professional responsibility for the candidate's engineering output.*

What Greene Did That Breaks This Law

BREACH	Greene directed you — a candidate engineer actively working toward PrEng registration — to report to and take technical direction from Ruan Van Zyl, Jacques Van Der Walt, and Sean — all unregistered structural engineers. This arrangement means your qualifying experience for ECSA registration was being supervised by persons who are not registered and who cannot take professional responsibility for engineering output under the Act.

- Ruan Van Zyl, Jacques Van Der Walt, and Sean are not registered with ECSA — confirmed by their designation as junior engineers
- A candidate engineer's qualifying experience must be supervised by a registered professional for it to count toward PrEng registration
- Larry Nell is registered but never functioned as your active supervisor — never assigned projects, never reviewed work, never conducted mentorship
- The Act does not just require a registered name in a contract — it requires active, substantive supervision
- Floris Jordaan (signatory of termination letter) is registered as Pr Tech Eng Civil — not Pr Eng — different scope of practice and registration category
- The ECSA Code of Conduct requires registered persons to take responsibility for work under their supervision — Larry Nell cannot claim he supervised work he never saw

How to Use This at the CCMA

5. State: 'The Engineering Profession Act 46 of 2000 requires that my qualifying experience as a candidate engineer be supervised by a registered professional engineer. This is an employment law obligation — not an internal preference.'
6. State: 'When I formally requested confirmation of my supervising PrEng in writing on 6 March 2026, no response was provided. The supervising PrEng named in my contract — Mr Larry Nell — never assigned me a project, reviewed my work, or conducted any mentorship session during my entire nine days of employment.'
7. State: 'I was instead directed by Floris Jordaan to report to Ruan Van Zyl, Jacques Van Der Walt, and Sean as my superiors. None of these individuals are registered with ECSA. An instruction to substitute unregistered engineers for PrEng supervision is not a lawful instruction. Refusing it is not insubordination.'
8. Hand commissioner the 6 March email. Point to the section requesting PrEng confirmation. Show the absence of any response.

VERDICT: The EPA provides the foundation for your insubordination defence. The instruction was unlawful. You cannot be dismissed for refusing an unlawful instruction.

Cross-Reference: *Law 1 — s187 | Law 2 — s188 | Part 3 — NDA Analysis | Part 5 — Letter Point 3*

LAW 6 — Unemployment Insurance Act 63 of 2001: UIF Entitlement

Where to Find It

- Unemployment Insurance Act 63 of 2001
- Unemployment Insurance Contributions Act 4 of 2002
- Sections 16–20: Unemployment benefits
- www.gov.za/documents/unemployment-insurance-act
- Department of Labour — 215 Francis Baard Street, Pretoria — Tel: 012 309 4000

What the Law States

UIA s16	*Subject to this Act, a contributor who is unemployed is entitled to unemployment*

benefits if the contributor has been dismissed and is not otherwise disqualified from receiving such benefits.

Your Entitlement

- You contributed to UIF from 1 March 2026 to 9 March 2026
- You were dismissed — not resigned — UIF applies to dismissed employees
- File immediately at the Department of Labour — 215 Francis Baard Street, Pretoria
- Request UI19 form from Greene by email — they are legally obligated to provide it
- Claim will be small given 9 days but file immediately to establish the record and receive whatever is owed

PART 2 — YOUR CASE FACTS: THE COMPLETE EVIDENCE PICTURE

This section maps every material fact to the law it supports. When the commissioner asks you a question, your answer must always connect a fact to a law. This section trains you to do that automatically.

2.1 The Parties and Key Details

FIELD	DETAIL
Your Full Name	Daryl Keenan Mack — ID: 9801265313082
Qualification	BSc (Hons) Civil Engineering — University of Cape Town
Professional Status	Candidate Engineer — Actively pursuing PrEng registration with ECSA
Industry Experience	3 years — RC multi-storey, steel warehouses, seismic design, civil infrastructure
Employer	Greene Consulting Engineers (Pty) Ltd — Reg No: 2009/001718/07
Employment Start	1 March 2026
Employment End	9 March 2026 — 9 working days
Monthly Salary	R36,500 gross
Daily Rate (approx)	R1,685 (R36,500 / 21.67 working days)
CEO / MD	JM Watermeyer — Pr Eng, Pr CPM, BEng — signed the NDA
Director / Termination Author	Floris Jordaan (FPJ Jordaan) — Pr Tech Eng Civil — signed termination letter
Associate (Named Supervisor)	Larry Nell (LG Nell) — Pr Eng Civil — named in contract — never supervised
Director	Rikus De Beer — Pr Eng, PMP — received written notice of supervision failures
Junior Engineer 1	Ruan Van Zyl — unregistered — directed as your superior
Junior Engineer 2	Jacques Van Der Walt — unregistered — directed rebar detailing
Junior Engineer 3	Sean (surname TBC) — unregistered — directed as your superior
Firm Age	Established 2009 — 16 years old
Firm Size	Approximately 13 employees

2.2 The Facts Mapped to Law

FACT	LAW / PROVISION	DOCUMENT PROVING IT
No laptop, no AutoCAD, no workstation on day one	BCEA — employer's duty to provide work | Implied employment contract terms	Sick day email ~4 Mar 2026
Seated with draughtsmen not engineers	Employment contract Clause 3 — suitable work within vocational abilities	Sick day email — seating referenced
Assigned rebar detailing as primary task	Employment contract Clause 3 — suitable work | LRA s188 — valid reason	6 March email — rebar paragraph
Phantom project — no brief, no architect drawings, no client, no geotech	LRA s188 — employer failed to provide work | ECSA supervision failures	Junior engineer verbal confirmation | 6 March Larry email requesting brief
Directed to report to Ruan Van Zyl as superior	Engineering Profession Act s26 — unlawful instruction | LRA s187 — protected activity	6 March email | Floris confirmation email | Termination letter Point 3
Floris ultimatum — accept or leave	LRA s186(1)(e) — constructive dismissal | LRA s187 — automatically unfair	Floris confirmation email 6 March | Timestamped personal note 5 March
MD Johan: 'Fall in line'	LRA s187 — suppression of statutory rights | LRA s185 — right not to be unfairly dismissed	Timestamped personal note 5 March 2026
Formal concerns raised 6 March — no substantive response	LRA s187 — protected activity | ECSA Code of Conduct breach	6 March comprehensive email to Larry — unanswered
No disciplinary hearing before dismissal	LRA Schedule 8 Item 4 — procedural fairness | Contract Clause 10	Termination letter — no hearing referenced | Absence of any hearing record
Termination letter cites insubordination for asserting EPA rights	LRA s187 — automatically unfair | EPA s26 — lawful assertion	Termination letter 9 March 2026 — Point 3
Termination letter: Larry Nell active supervisor AND Ruan Van Zyl lawful reporting line	Internal contradiction — cannot both be true	Termination letter Points 3 and 5 — single document
Floris: 'You are not going to change the way we do things here'	LRA s187 — deliberate suppression of statutory rights | Motive for dismissal	Dismissal confirmation email 9 March — documented same day
NDA invoked to suppress ECSA complaint	NDA Clause 3.2.5 — statutory disclosures excluded | EPA — statutory reporting right	NDA document | Floris response email
One month verbal settlement offer —	Negotiation leverage — opening position only	Your dismissal confirmation email 9 March — recorded unaccepted offer

not documented in letter		

2.3 The Central Contradiction — Your Most Powerful Argument

THE IRRESOLVABLE CONTRADICTION IN GREENE'S OWN TERMINATION LETTER

This is the argument that wins your case. Read it, memorise it, practise saying it out loud.

- TERMINATION LETTER POINT 5 states: 'Your assertion that you were not assigned a supervising professional engineer is factually incorrect. In terms of Clause 1 of your Employment Contract you were assigned to report directly to Mr Larry Nell who is a registered Professional Engineer.'
- TERMINATION LETTER POINT 3 states: The instruction to report to Ruan Van Zyl was a lawful operational instruction. Your refusal constitutes insubordination.

WATCH OUT: These two statements cannot both be true. If Larry Nell was your active supervising PrEng, then the instruction to report to Ruan Van Zyl contradicts that arrangement and cannot simultaneously be a lawful operational instruction. If reporting to Ruan Van Zyl was the actual operational arrangement, then Larry Nell was not functioning as your active supervisor and Point 5 is false.

How to use this at the CCMA:

9. Hand the commissioner the termination letter. Ask them to read Points 3 and 5 together.
10. State: 'Commissioner, the employer's own signed document contains a direct internal contradiction. Point 5 claims Larry Nell was my active supervising professional engineer. Point 3 claims that reporting to Ruan Van Zyl — an unregistered engineer — was a lawful instruction I was required to follow. Both claims cannot simultaneously be true. Either Larry Nell was my active supervisor — in which case Ruan Van Zyl's oversight was not a lawful instruction — or Ruan Van Zyl was my actual reporting line — in which case I had no PrEng supervision at all. In either case, the employer's stated reason for dismissal collapses.'
11. Wait. Do not elaborate further. Let the commissioner read the letter.

VERDICT: This contradiction is documented in Greene's own signed document. It cannot be retracted. It is your most powerful single exhibit.

PART 3 — THE NDA DECODED: HOW TO DEFEAT THEIR SUPPRESSION ATTEMPT

3.1 What the NDA Actually Says

- The NDA was signed on 26 February 2026 — BEFORE employment commenced on 1 March 2026
- It is titled 'Registration and NDA Form' — designed for prospective clients, partners, suppliers, or employees
- It is bilateral — BOTH parties are bound — Greene cannot use their own NDA to suppress your legal rights while being exempt from its obligations themselves

3.2 The Clause That Defeats Their NDA Argument

NDA Clause 3.2.5	*Confidential Information excludes information that: must be disclosed by law, provided notice is given to the Disclosing Party in advance.*

  - Reporting professional misconduct to ECSA is governed by the Engineering Profession Act — it is a disclosure permitted or required by law
- Filing at the CCMA is a statutory right under LRA Section 191 — confirmed in Greene's own termination letter — it is a disclosure required by law
- Seeking legal advice is protected by attorney-client privilege — independent of any NDA
- Notice to Greene was effectively provided in your formal emails of 6 March and 9 March 2026 — satisfying the notice condition in Clause 3.2.5

What to Say If Greene Raises the NDA

If Greene's representative raises the NDA at conciliation or arbitration, respond as follows:

'The NDA signed on 26 February 2026 contains Clause 3.2.5 which explicitly excludes from the definition of Confidential Information any information that must be disclosed by law. My ECSA complaint is governed by the Engineering Profession Act 46 of 2000. My CCMA referral is a right conferred by Section 191 of the Labour Relations Act 66 of 1995 — a right the employer themselves confirmed in their termination letter. Both are statutory disclosures falling within Clause 3.2.5's express exclusion. The NDA cannot prevent me from exercising statutory rights.'

3.3 The Non-Solicitation Clause — What It Does and Does Not Restrict

NDA Clause 9.1	*For a period of two years following termination, neither party shall solicit, induce or attempt to engage any clients, suppliers or personnel of the other party.*

- This clause does NOT prevent you from working in the structural engineering industry
- This clause does NOT prevent you from working for any competing firm
- This clause DOES prevent directly soliciting Greene's specific named clients — respect this for two years

- This clause binds BOTH parties — Greene cannot approach you, contact you, or use your details to solicit you for two years either

PART 4 — EMPLOYMENT CONTRACT: CLAUSE BY CLAUSE IN YOUR FAVOUR

4.1 Clause 1 — Job Title: The Supervision Trap

Contract Clause 1	*The Employee shall be employed as a Structural Engineer and will report directly to Mr Larry Nell.*

- Larry Nell is your contractual supervisor — Greene committed to this in writing
- Larry Nell never assigned a project, never reviewed your work, never conducted any mentorship — 9 days of employment with zero substantive supervision
- The gap between contractual commitment and operational reality is your evidence of supervision failure
- When Greene says Larry Nell satisfied the supervision requirement, ask: 'Can the employer produce a single email, meeting note, project assignment, or reviewed calculation showing Larry Nell functioned as my active supervisor during my 9 days of employment?'
- They cannot. Because it does not exist.

Cross-Reference: *Law 5 — Engineering Profession Act | Part 2 — Central Contradiction*

4.2 Clause 3 — Duties: The Word 'Lawful' Is Your Weapon

Contract Clause 3	*The Employee agrees and undertakes to obey all reasonable and lawful orders and instructions that may be given by any person employed by the Employer who is in a managerial or supervisory position.*

- The word LAWFUL appears explicitly in the clause Greene uses to argue insubordination
- An instruction is only lawful if it does not require the employee to violate the law
- Directing a candidate engineer to substitute unregistered engineers for PrEng supervision violates the Engineering Profession Act — it is therefore NOT a lawful instruction
- Greene's insubordination argument requires them to prove the instruction was lawful — they cannot do this without contradicting the Engineering Profession Act
  - Their own Clause 3 contains the word that defeats their argument: LAWFUL

Cross-Reference: *Law 5 — Engineering Profession Act | Law 2 — Substantive Unfairness*

4.3 Clause 4 — Probation: What It Can and Cannot Do

Contract Clause 4	*During the first four weeks of the employment this contract may be terminated by either party upon 24 hours notice.*

- The 24-hour notice provision is void under BCEA Section 37(2) — the BCEA minimum of one week applies instead

- More importantly: Probation provisions CANNOT override Section 187 automatically unfair dismissal protections
- Section 187 applies to all employees regardless of probationary status — there is no 'probation exception' to automatically unfair dismissal
- Probation reduces procedural requirements for UNSUITABILITY dismissals only — it does not reduce them for MISCONDUCT dismissals
- If insubordination is the ground — as stated — a disciplinary hearing was required regardless of probation status

WATCH OUT: Greene's entire defence relies on probation provisions. Your answer to every probation argument is Section 187. That section has no probation exception.

4.4 Clause 10 — Termination: They Broke Their Own Contract

Contract Clause 10	*The Employer will in such event follow the procedure laid down in the disciplinary code and procedure.*

- This clause independently requires Greene to follow their own disciplinary code before termination for misconduct
- No disciplinary code was followed — no hearing, no charge, no process
- This is a breach of the employment contract itself — a separate civil claim running parallel to the LRA claim
- State to the commissioner: 'In addition to the LRA violations, the employer breached Clause 10 of the employment contract which explicitly required them to follow their own disciplinary procedure. No procedure was followed.'

Cross-Reference: *Law 3 — Schedule 8 Procedural Unfairness*

4.5 Clause 20 — IP: Why They Cannot Claim Your Knowledge

Contract Clause 20	*The Employer shall reserve the right to retain all rights to any inventions, designs, discoveries, improvements made or conceived by the Employee during employment.*

- This clause applies to inventions and discoveries made DURING employment — it does not reach back to assign pre-existing knowledge
- Your seismic design methodology, sinkhole engineering experience, and warehouse structural knowledge were developed over 3 years at L&S Consulting and Nadeson — BEFORE joining Greene
- Pre-existing professional knowledge cannot be assigned through an employment contract under South African IP law
- The calculations you produced in 9 days are based on your pre-existing knowledge — not knowledge developed as a Greene employee
- Your timestamped personal copies dated during employment are evidence of authorship — they predate any Greene project assignment

PART 5 — THE TERMINATION LETTER: YOUR STRONGEST EXHIBIT

Greene's termination letter is your most important document. It confirms the dismissal event, provides the stated reasons you will dismantle, and contains the internal contradiction that collapses their case. Study every point.

5.1 What the Letter Gets Right (That Helps You)

- It confirms your employment was terminated on 9 March 2026 — establishing the dismissal event for CCMA purposes
- It quotes your 6 March email asserting Engineering Profession Act rights as the reason for dismissal — establishing the causal link for Section 187
- It acknowledges your right to refer to the CCMA under Section 191 — they cannot retract this
- It confirms the instruction to report to Ruan Van Zyl was an operational instruction — establishing that unregistered supervision was the actual arrangement

5.2 What the Letter Gets Wrong (That Damages Them)

Point 3 — Insubordination Claim

THEIR CLAIM	Your written correspondence dated 6 March 2026 records a refusal to comply with operational instructions issued by management, which constitutes insubordination.

- They quote two statements from your email as insubordination
- Statement 1 (reporting structure): This is an assertion of EPA statutory rights — not a refusal to work — cannot constitute insubordination
- Statement 2 (rebar detailing): Your email explicitly stated you did not mind doing this work — this is not a refusal by any reasonable interpretation
- For insubordination to be valid: the instruction must be lawful, reasonable, and clearly communicated — the supervision instruction fails the lawfulness test

Point 4 — Process Claim

THEIR CLAIM	Schedule 8 Item 8(5) of the LRA provides an employer may dismiss an employee during probation if found to be unsuitable for the position.

- Item 8(5) applies to UNSUITABILITY — they stated INSUBORDINATION (misconduct) as the reason
- They cannot use the unsuitability probation provision for a misconduct dismissal
- This conflation of two separate legal grounds is a fatal procedural error

Point 5 — Supervision Claim

THEIR	Your assertion that you were not assigned a supervising professional engineer is

CLAIM	factually incorrect. You were assigned to report directly to Mr Larry Nell who is a registered Professional Engineer.

- This claim directly contradicts Point 3 of the same letter — see the Central Contradiction in Part 2.3
- Larry Nell never assigned a project, reviewed work, or conducted mentorship — nominal contract designation ≠ active PrEng supervision
- ECSA requires active, substantive supervision — not merely a name in a contract

What Is Missing From the Letter

  - No reference to the verbal one month settlement offer — it was made but not documented — opening for negotiation
- No reference to any disciplinary hearing, charge sheet, or finding — because none occurred
- No written performance concerns previously issued — because none were issued
- No response to the 8 professional concerns raised in your 6 March email — because they had no answer
- No named replacement PrEng supervisor offered — because no genuine supervision existed

PART 6 — THE ECSA COMPLAINT: YOUR PARALLEL WEAPON

The ECSA complaint runs completely independently of the CCMA. It does not wait for the CCMA to resolve. It creates immediate pressure on the registered professionals named. File both simultaneously.

6.1 Why File With ECSA

- Larry Nell and Rikus De Beer are registered PrEngs — ECSA has jurisdiction over their professional conduct
- A finding of professional misconduct affects their registration status, indemnity insurance, and ability to sign off on designs — this is their greatest personal professional risk
- An active ECSA investigation running alongside a CCMA dispute dramatically increases Greene's motivation to settle the CCMA matter quickly and generously
- The ECSA complaint is free — no cost to file
- The NDA Clause 3.2.5 expressly permits statutory disclosures — the ECSA complaint falls within this exclusion

6.2 The Grounds for Your ECSA Complaint

Ground 1 — Failure to Provide Active PrEng Supervision

ECSA Code s4	*A registered person shall accept responsibility only for engineering work performed under their responsible supervision.*

- Larry Nell is named supervisor in the contract but never functioned as one
- No projects assigned, no work reviewed, no mentorship provided in 9 days of employment
- Larry Nell received formal written notice on 6 March 2026 requesting confirmation of supervising PrEng — no response was provided
- Silence on a formal written request for supervision confirmation from a candidate engineer is a failure of professional duty

Ground 2 — Directing Candidate Engineer to Unregistered Supervisors

- Floris Jordaan directed you to report to Ruan Van Zyl, Jacques Van Der Walt, and Sean as formal superiors
- None of these individuals are registered with ECSA
- This direction was confirmed in writing in your email of 6 March 2026 and not denied in the termination letter
- Directing a candidate engineer's work to unregistered persons for supervision violates the professional obligations of the registered persons who are responsible for that candidate

Ground 3 — Assigning Work Without Adequate Professional Oversight

- You were assigned a structural design exercise with no architect drawings, no geotech, no client, no brief
- The only input was an internal plan layout — confirmed by the junior engineer in writing
- A registered professional assigned this exercise and was responsible for providing adequate briefing and oversight
- Assigning engineering work without adequate professional inputs and oversight is inconsistent with the ECSA Code

6.3 How to File the ECSA Complaint

12. Go to www.ecsa.co.za
13. Search the public register for Larry Nell and Rikus De Beer — record their registration numbers
14. Search for Greene Consulting Engineers — record their firm registration number
15. Navigate to the complaints section — complete the online form
16. Attach: employment contract, 6 March email to Larry, Floris confirmation email, termination letter, your rebuttal email, timestamped personal notes
17. State the three grounds listed above clearly and specifically
18. Reference the Engineering Profession Act 46 of 2000 and the ECSA Code of Conduct in your complaint

PART 7 — THE CCMA PROCESS: STEP BY STEP

7.1 Filing — Do This First

- Where: CCMA Pretoria — Metro Park Building, 351 Francis Baard Street, Pretoria
- Hours: Open from 07:30 Monday to Friday
- Form: LRA Form 7.11 — Referral of a dispute to the CCMA — available at the office or www.ccma.org.za
- Cost: Free
  - Deadline: 30 days from dismissal — 8 April 2026 — DO NOT MISS THIS DATE
- Helpline: 0861 161 616 — free call — guidance on the process before you go

What to Write on the Form

- Nature of dispute: Unfair dismissal — automatically unfair dismissal under Section 187(1)(h) of the LRA
- Reason given by employer: Insubordination and incompatibility during probation period
- Your reason: Dismissal was for asserting statutory rights under the Engineering Profession Act 46 of 2000 — automatically unfair under LRA Section 187
- Relief sought: Compensation equivalent to 24 months remuneration under LRA Section 194(3)
- Note financial hardship on the form — request expedited hearing — you are unemployed with no income

7.2 What to Bring to the CCMA — Your Document Bundle

DOCUMENT	PURPOSE
This preparation guide	Your complete reference during proceedings
Employment contract	Proves Clause 1 (Larry Nell supervisor), Clause 3 (lawful instructions), Clause 10 (disciplinary obligation)
NDA — 26 Feb 2026	Proves Clause 3.2.5 defeats suppression attempt
Termination letter — 9 March	Primary exhibit — confirms dismissal — contains central contradiction
6 March email to Larry	8 professional concerns — unanswered — proves protected activity and no response
Floris confirmation email — 6 March	Documents ultimatum — accept unregistered supervision or leave
MD Johan note — 5 March	Documents 'fall in line' — senior suppression of statutory rights
Floris ultimatum note — 5 March	Timestamped — documents accept or leave demand
Dismissal confirmation email — 9 March	Documents verbal offer not accepted — reserves all rights

Rebuttal email — 9 March	Point by point dispute — NDA, Clause 10 breach, s187 cited
Sick day email — ~4 March	Documents onboarding failures — laptop, AutoCAD, lost day
Rikus hierarchy email — ~4 March	Documents culture of hierarchy over professional compliance
Personal work log	Proves you produced work — counters any deletion attempt
Timestamped calculations	Cloud-backed personal copies — proves authorship
Chronological summary — 1 page	Hand this to the commissioner first — tells the story clearly

7.3 Conciliation — The Settlement Hearing

Conciliation is typically held within 30 days of filing. It is facilitated by a CCMA commissioner. Both parties attend. The commissioner tries to bring you to a settlement. This is where most matters resolve.

- The commissioner is neutral — not your advocate — but they are experienced and will read your documents
- Greene will likely have an attorney present — stay calm — your documents are stronger than their arguments
- The commissioner will ask both parties to state their positions briefly — keep yours to 2 minutes and refer to your key exhibits
- Your opening statement: 'Good day Commissioner. My name is Daryl Mack. I was employed by Greene Consulting Engineers from 1 March 2026. On 3 March I sent my first email raising onboarding concerns. On 5 March between 7 and 8am, Larry Nell called me into his office and told me upper management was not impressed and wanted to let me go — the dismissal decision was communicated before my 6 March email that Greene cites. The employer's own termination letter confirms the dismissal citing my assertion of Engineering Profession Act rights. This is automatically unfair dismissal under Section 187(1)(h) of the LRA. I am seeking compensation of R219,000 net of tax.'

Settlement Mandate for Conciliation

POSITION	AMOUNT (NET)
Opening demand	R219,000 net — 6 months salary
Target	R146,000 to R183,000 net — 4 to 5 months
Absolute floor	R109,500 net — 3 months — do not go below this
Non-monetary must-haves	Neutral reference, no misconduct waiver, tax directive, certificate of service
Do not accept	Misconduct reporting waiver — ECSA rights must be preserved

7.4 Arbitration — If No Settlement

If conciliation fails the commissioner issues a certificate of non-resolution and the matter proceeds to arbitration. Arbitration is more formal but still manageable without an attorney if your documents are organised.

- Arbitration can take 6 to 12 months from filing
- You present your case first — use your documents in the order listed in Part 7.2
- Open with the chronology — establish the timeline clearly
- Present the central contradiction — hand the termination letter and let it speak
- Present the 6 March email — show protected activity — show no response
- Present Section 187 — read the section aloud if necessary
- Close with the compensation calculation — R876,000 ceiling — ask the commissioner for a just award
- Legal Aid South Africa: 0800 110 110 — free representation for qualifying applicants — apply before arbitration

PART 8 — SETTLEMENT STRATEGY: HOW TO NEGOTIATE YOUR BEST OUTCOME

8.1 Understanding Your Leverage

- Greene's maximum legal exposure is R876,000 — 24 months salary under LRA s194(3)
- Your ask of R219,000 is 25% of their maximum exposure — from their attorneys' perspective, settling is rational
- The ECSA complaint threatens the personal professional registration of Larry Nell and Rikus De Beer — two named registered professionals — this is their greatest personal risk
- A public arbitration record in a small industry damages their ability to attract future candidates and clients
- Their termination letter contains a self-defeating internal contradiction — their attorneys know this
- You have 14 pieces of documented evidence — they have a four-page letter that contradicts itself

8.2 The Negotiation Script

When They Make the First Offer

Whatever the number — say nothing for five seconds. Then:

'Thank you for the offer. I am not in a position to respond today. I will review it and respond in writing within 48 hours.'

Then stop talking. Silence after a first offer is powerful.

Your Counter-Offer Response (48 Hours Later in Writing)

'Having considered the offer and the full circumstances of my dismissal, I am prepared to settle this matter on the following terms: Settlement payment of R219,000 net of tax, paid within 7 days of signature. A neutral reference confirming my employment dates and position. No waiver of my right to report professional misconduct to ECSA or any other statutory regulator. A tax directive to minimise PAYE deductions. A certificate of service. These are my terms for full and final resolution.'

If They Push Back on the Amount

'I understand the position. My calculation is based on Section 194(3) of the LRA which provides for compensation of up to 24 months remuneration for automatically unfair dismissal. My claim is for automatically unfair dismissal under Section 187. Greene's termination letter quotes my assertion of Engineering Profession Act rights as the reason for dismissal — the causal link is explicit. My ask of R219,000 represents approximately 6 months salary against a statutory ceiling of R876,000. I believe it is a reasonable resolution.'

If They Push Back on the ECSA Clause

'The right to report professional misconduct to a statutory regulator cannot be contracted away. NDA Clause 3.2.5 of Greene's own agreement explicitly excludes statutory disclosures from confidentiality obligations. I am not prepared to waive this right. If the settlement cannot be concluded on this basis, I will proceed to arbitration and file with ECSA simultaneously.'

WATCH OUT: Never accept a settlement with a misconduct reporting waiver. Never sign under duress. Never agree to anything verbally. Always take 48 hours to respond in writing.

8.3 Tax Treatment — Push Hard on This

- Ask: 'Is the settlement amount gross or net of tax?'
- Push for NET — meaning after a tax directive minimising PAYE deductions
- A tax directive on a settlement payment can save you R20,000 to R40,000 depending on the structure
- This is a standard and accepted negotiation point — Greene's attorneys will understand it
- If they refuse to discuss tax treatment, factor the gross deduction into your counter-offer

PART 9 — SCRIPTS: EXACTLY WHAT TO SAY IN EVERY SCENARIO

These scripts are your verbal preparation. Read them aloud. Practise them. When you are in the room, calm and prepared speech signals confidence to the commissioner.

9.1 Opening Statement at Conciliation

'Good day Commissioner. My name is Daryl Mack. I was employed by Greene Consulting Engineers from 1 March 2026. I was dismissed on 9 March 2026 after 9 days of employment.

I want to draw your attention to a critical fact about the timeline. On 3 March 2026 I sent my first email raising concerns about my onboarding — that it was unprofessional and that I had lost a productive day. On 5 March 2026 between 7 and 8am, Larry Nell — my named supervisor — called me into his office and told me that upper management was not impressed and wanted to let me go. That is the dismissal decision. It was communicated on 5 March — two days before the email Greene cites as the reason for dismissal in the termination letter.

My dismissal is automatically unfair under Section 187(1)(h) of the Labour Relations Act 66 of 1995. The dismissal was triggered by my first protected communication on 3 March. The employer's own termination letter further confirms the dismissal by citing my 6 March assertion of Engineering Profession Act rights as insubordination — asserting a statutory obligation is protected activity under Section 187. No disciplinary hearing was held despite insubordination being the stated reason — a misconduct ground requiring a hearing under Schedule 8 Item 4. I am seeking compensation of R219,000 net of tax, a neutral reference, and preservation of my right to file with ECSA.'

9.2 If Asked Why You Refused the Instructions

'I did not refuse to work. I raised a professional concern in writing. The instruction to report to unregistered engineers as my formal supervisors is not a lawful instruction — it requires me to violate the Engineering Profession Act which governs my professional registration pathway. My employment contract Clause 3 requires me to obey lawful instructions. The instruction was not lawful. I cannot be found insubordinate for declining an unlawful instruction. This is supported by Section 187 — I was exercising a right conferred by an employment law.'

9.3 If Asked About the Rebar Detailing

'I explicitly stated in my email of 6 March 2026 that I did not mind doing rebar detailing work to align with company standards. The full sentence reads: I do not mind doing this type of work to align myself with company standards, but this being the first task I received feels misaligned with my role and qualifications. That is not a refusal. That is a professional observation accompanied by explicit willingness to comply. Greene quoted half my sentence and omitted my statement of willingness.'

9.4 If Greene Raises the Probation Period

'Section 187 of the Labour Relations Act has no probation exception. Automatically unfair dismissal applies to all employees regardless of probationary status. Furthermore, Schedule 8 Item 8(5) permits probation dismissals for unsuitability — not for misconduct. Greene stated insubordination as the reason. That is a misconduct ground. A disciplinary hearing was required. None was held. The probation provisions do not assist the employer in these circumstances.'

9.5 If Greene Raises the NDA

'The NDA signed on 26 February 2026 contains Clause 3.2.5 which explicitly excludes from the definition of Confidential Information any information that must be disclosed by law. My ECSA complaint is governed by the Engineering Profession Act. My CCMA referral is a right confirmed by Section 191 of the LRA — a right Greene themselves acknowledged in their termination letter. Both are statutory disclosures within the Clause 3.2.5 exclusion. The NDA does not prevent me from exercising statutory rights.'

9.6 If They Present the Central Contradiction — Handle It First

'Commissioner, I would like to draw your attention to something in the employer's own termination letter. Point 5 states Larry Nell was my active supervising Professional Engineer satisfying supervision requirements. Point 3 of the same letter states that reporting to Ruan Van Zyl — an unregistered engineer — was a lawful operational instruction I was required to follow. Both statements cannot be true simultaneously. If Larry Nell was my active supervisor, the instruction to report to an unregistered engineer contradicts that arrangement. If Ruan Van Zyl was my actual reporting line, Larry Nell was not my active supervisor. The employer's stated reason for dismissal collapses under this contradiction.'

PART 10 — FINANCIAL SUMMARY: KNOW YOUR NUMBERS

10.1 What Greene Owes You — Statutory Minimum

ENTITLEMENT	AMOUNT
Salary to 9 March 2026 (9 days)	R15,165 gross approx
Notice pay — BCEA s37 minimum (1 week)	R8,400 gross approx
Pro rata 13th cheque (9/365 days)	R900 gross approx
TOTAL STATUTORY MINIMUM	R24,465 gross before deductions
Basis for notice pay	BCEA s37(1)(a) — 1 week for less than 6 months service — overrides 24-hour contract clause per BCEA s37(2)

10.2 Settlement Target — Know These Numbers Cold

POSITION	AMOUNT NET
Opening demand (6 months)	R219,000
Strong outcome (4-5 months)	R146,000 – R183,000
Absolute floor (3 months)	R109,500 — do not go below this
Greene's verbal opening	R36,500 — one month — not documented — not accepted
Maximum theoretical award	R876,000 — LRA s194(3) ceiling — 24 months
Greene's total legal exposure	R876,000 CCMA + ECSA sanctions + legal costs + reputational damage

10.3 Non-Monetary Terms — These Are As Important As The Money

- Neutral reference — exact wording in the settlement document — employment dates and position only
- No derogatory reference clause — they cannot say anything negative when called by future employers
- No ECSA misconduct reporting waiver — non-negotiable — this right cannot be contracted away
- Tax directive — settlement paid net of tax or subject to tax directive — push for this
- Certificate of service — BCEA statutory obligation — confirm in the agreement
- Payment within 7 days of signature — no delayed payment clauses
- Specific exit date — defined clearly in the agreement

PART 11 — IMMEDIATE ACTION CHECKLIST: TOMORROW AND THIS WEEK

11.1 Monday 10 March 2026 — Execution Day

TIME	ACTION
First thing (home)	Send formal rebuttal email to Floris, Larry, Rikus — CC yourself and recruitment agency — from personal email
07:30 — Morning	CCMA Pretoria — Metro Park Building, 351 Francis Baard Street — File Section 191 LRA Form 7.11 — state financial hardship — request expedition
After CCMA	Department of Labour — 215 Francis Baard Street — UIF application — request UI19 form
Same day	Email Greene requesting UI19 form — state they are legally obligated under the UIA
Same day	Contact recruitment agency — send formal notification letter
Same day	Ensure all documents saved in at least 3 locations — email, cloud, phone

11.2 This Week — 10 to 14 March 2026

- File ECSA complaint — www.ecsa.co.za — attach full documentation — search registration numbers first
- Update CV — include Greene with professional one-line explanation — lead with prior experience
- Begin Centurion job search — WSP, Aurecon, Bigen Group, Structa Consulting, boutique structural firms
- LinkedIn — open to work — not publicly visible
- Activate UCT alumni network and ECSA candidate network
- Apply for Legal Aid if you may need representation at arbitration — 0800 110 110

11.3 Free Resources — Save These Numbers

RESOURCE	CONTACT
CCMA Pretoria	Metro Park Building, 351 Francis Baard Street | 012 317 7800 | pta@ccma.org.za
CCMA Helpline	0861 161 616 — Free
Department of Labour	215 Francis Baard Street, Pretoria | 012 309 4000
Legal Aid South Africa	0800 110 110 — Free — Arbitration representation
ECSA Complaints	www.ecsa.co.za — Free
SAFLII — Legislation	www.saflii.org — Free access to all South African

	legislation
LRA Full Text	www.gov.za/documents/labour-relations-act
EPA Full Text	www.gov.za/documents/engineering-profession-act
BCEA Full Text	www.gov.za/documents/basic-conditions-employment-act

YOUR CASE IN THREE SENTENCES

On 3 March I raised concerns. On 5 March Larry told me management wanted to let me go. On 9 March they did. That is automatically unfair dismissal under Section 187(1)(h) of the Labour Relations Act.

CCMA Deadline: 8 April 2026 | File Tomorrow | Know Your Law | Present Your Documents | Hold Your Floor